

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B20: post-dissolution mandate route marker B20.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Mandate After Abandonment and Stay Dissolution

Issued August 11, 2026

To the United States District Court for the Western District of Virginia:

The judgment of this Court entered June 30, 2026 is now effective. The panel dismissed Officer Nolan Rusk's attempt to appeal the sufficiency of evidence concerning disputed resistance and threat. It affirmed the district court's legal denial of qualified immunity after accepting the supported plaintiff-favorable facts for that limited analysis. The cause is remanded for proceedings consistent with the published opinion.

Mandate issuance was stayed on July 20 while Rusk evaluated a petition for certiorari. Rusk filed notice on August 10 that he would not seek Supreme Court review and had obtained no extension. The panel dissolved the stay that day and ordered issuance on August 11. No petition or extension continues withholding under Federal Rule of Appellate Procedure 41(d).

The mandate does not establish whether Ellison struck Rusk, reached toward his belt, or merely pulled because wrist control hurt. Those historical alternatives were excluded from collateral fact review. The legal holding applies to the assumed account and leaves appropriate factual proceedings to the district court.

The June 30 judgment's costs allocation remains undisturbed: each side bears its own appellate costs, and neither receives an award through this mandate.

Certified Return of the Cause

The June 30 opinion and judgment are certified and incorporated into this mandate. Their full reasoning controls the remand. The district court may schedule the surviving Fourth Amendment claim, decide evidentiary matters, and conduct trial proceedings without treating the appellate assumptions as a verdict.

This issuance follows voluntary abandonment of planned certiorari review, not denial of a petition by the Supreme Court. No immediate-issuance event under Rule 41(d)(4) occurred. Instead, the circuit panel used its authority to dissolve the limited stay on August 10 and fix August 11 as the release date.

The mandate is effective when issued today. Electronic receipt by the district clerk documents transmission but is not an additional legal condition. Camera originals, export logs, transcripts, and other evidence remain subject to the district court's custody and preservation directives.

Nothing here revives claims omitted from the operative amended complaint or converts Officer Priya Vega into a party. Costs and administrative closure at the circuit may proceed separately from the merits on remand. The fictional counterfactual docket shall be closed after service is confirmed.

Issued under seal at the direction of Chief Judge Alder and Judges Reed and March on August 11, 2026.